

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4408

By: Blancett

COMMITTEE SUBSTITUTE

An Act relating to State Question 780 data; amending 57 O.S. 2021, Section 632, as amended by Section 2, Chapter 201, O.S.L. 2023, and as renumbered by Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-312.2), which relates to calculation of savings and averted costs from implementation of the Oklahoma Smart Justice Reform Act; requiring the Department of Corrections to provide certain data to the Legislative Office of Fiscal Transparency; requiring the Administrator of the Courts to provide certain data to the Legislative Office of Fiscal Transparency; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 632, as amended by Section 2, Chapter 201, O.S.L. 2023, and as renumbered by Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-312.2), is amended to read as follows:

Section 2-312.2. No later than July 31 of each year, the Department of Corrections shall provide the Legislative Office of Fiscal Transparency with data for the prior fiscal year ending June

1 30, reflecting the number of unique offenders and days served by
2 each offender, upon completion of the corresponding sentence, for
3 those convicted only of crimes modified by State Question 780. No
4 later than July 31 of each year, the Administrator of the Courts
5 shall provide the Legislative Office of Fiscal Transparency with
6 data necessary to calculate the annual savings and averted costs,
7 including the number of persons convicted only of crimes modified by
8 State Question 780 and the number of days sentenced for such crimes.
9 For purposes of this section, crimes modified by State Question 780
10 shall include only those crimes that were previously felonies that
11 are now misdemeanors and crimes that fall between the former dollar
12 threshold and current dollar threshold for crimes whose severity is
13 determined by a dollar threshold. No later than thirty (30) days
14 after being provided with the data from both the Department of
15 Corrections and the Administrator of the Courts, the Legislative
16 Office of Fiscal Transparency shall calculate the annual savings and
17 averted costs from the prior fiscal year that accrued to the state
18 due to the reduction of the number and length of incarcerations
19 attributed to the implementation of the Oklahoma Smart Justice
20 Reform Act. In making the calculation required by this section, the
21 Legislative Office of Fiscal Transparency shall use actual data or
22 best available estimates where actual data is not available. The
23 calculation shall be final and shall not be adjusted for any
24 subsequent changes in the underlying data.

SECTION 2. This act shall become effective November 1, 2026.

60-2-17066 JBH 03/05/26